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**VILJOEN ATTORNEYS**  
**Carolyn Raban**

Your ref: C Raban  
Our ref: M Morgan/JVL 004

Date: 20 October 2014

Dear Carolyn

**THE SAUTECH TRUST: IT022190/2014(G)**

We refer to the above and have pleasure in enclosing the original letter of authority received from the Master, dated 13.10.2014.

It is imperative that the letter of authority is kept in a safe place, as the Master will require the original to be produced if future changes are brought to the trust.

We thank you for your valued instruction.

Yours faithfully

  
**MORESTAT CORPORATE SERVICES**

Print name: \_\_\_\_\_

Sign: \_\_\_\_\_

Date: \_\_\_\_\_

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**Viljoen Attorneys**  
**Riaan Viljoen**  
**Practicing Attorney**  
93 Soetdoring Crescent  
The Clubhouse  
Millwood Lifestyle Estate  
14 Petunia Road, Bryanston  
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REPUBLIC OF SOUTH AFRICA

# MAGTIGINGSBRIEF LETTERS OF AUTHORITY

Ingevolge Artikel 6(1) van die Wet op Beheer oor Trustgoed, 1988 (Wet 57 van 1988)  
In terms of Section 6(1) of the Trust Property Control Act, 1988 (Act 57 of 1988)

No: IT022190/2014(G)

Hiermee word gesertifiseer dat /  
This is to certify that

1) **STEPHANUS ALBERTUS VAN JAARSVELD - 5303255064084 (ID)**2) **HENDRIK CHRISTIAAN VAN JAARSVELD - 8104025017080 (ID)**3) **MAGDALENA CATHARINA VAN JAARSVELD - 5304080149082 (ID)**

gemagtig word om op te tree as trustee(s) van die /  
is/are hereby authorized to act as trustee(s) of the

**SAUTECH TRUST**

GEGEE onder my hand te op hede die dag van  
GIVEN under my hand at JOHANNESBURG this 13<sup>th</sup> day of OCTOBER year 2014

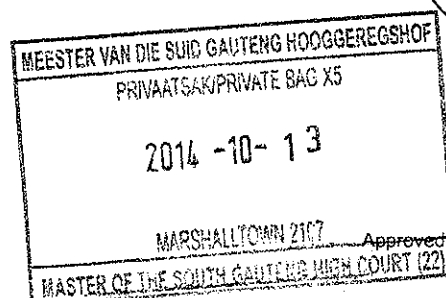
Signature S B V

**ASSISTENT MEESTER  
ASSISTANT MASTER**

DEPARTMENT OF JUSTICE AND CONSTITUTIONAL DEVELOPMENT

Captured by: DOJCD\NMNCWANGO

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Commissioner of Ombudsman  
Approved by: DAVID MATHOMBE  
Riaan Viljoen  
Practicing Attorney  
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# **DEED OF TRUST**

in respect of the

## **SAUTECH TRUST**

made and entered into between

## **HENDRIK CHRISTIAAN VAN JAARVELD**

("DONOR")

And

## **STEPHANUS ALBERTUS VAN JAARVELD**

and

## **MAGDALENA CATHARINA VAN JAARVELD**

("hereinafter referred to jointly as "TRUSTEES")

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## WHEREAS

The DONOR out of the love and affection borne by him to the beneficiaries herein mentioned and their families and being desirous of assisting with their general well-being, maintenance and quality of life wishes to create a trust in their favour and to make certain financial provision for their benefit on the terms and conditions set out hereunder.

## NOW THEREFORE IT IS AGREED AS FOLLOWS:

### 1. DEFINITIONS AND INTERPRETATION

1.1 In this trust deed, unless the context clearly indicates a contrary intention, the following words will have the following meanings, cognate expressions will have corresponding meanings and defined words are expressed in capital letters:

1.1.1 INCOME BENEFICIARY - any of the following beneficiaries:

1.1.1.1 Hendrik Christiaan van Jaarsveld (Identity Number 8104025017080);

1.1.2 The CAPITAL BENEFICIARIES.

1.1.3 CAPITAL BENEFICIARIES - any of the following beneficiaries:

1.1.3.1 Hendrik Christiaan van Jaarsveld (Identity Number 8104025017080);

1.1.3.2 any of the descendants of the aforementioned

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CAPITAL BENEFICIARY identified by name, including adopted children and any descendants of such adopted children;

1.1.3.3 any trust established for the benefit of any of the aforementioned CAPITAL BENEFICIARIES, provided that all of the beneficiaries of such trust will only be natural persons and provided further that any such trust is subject to terms and conditions essentially similar as those contained in this DEED;

1.1.3.4 in the event that there are no aforementioned CAPITAL BENEFICIARIES, the biological parents of the CAPITAL BENEFICIARY identified by name in this clause, namely Stephanus Albertus van Jaarsveld and Magdalena Catharina van Jaarsveld

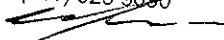
1.1.4 DEED - this deed of trust.

1.1.5 MAINTENANCE - when used in relation to any beneficiary, maintenance will include but not be limited to such beneficiary's travel (whether local or overseas), medical, dental and other similar treatment and advice, reasonable pleasures, the acquisition or provision of residential facilities and/or a residence suitable to the needs and requirements of any beneficiary, taxes, general upkeep, welfare, education and training (including tertiary or higher education whether local or offshore).

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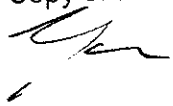


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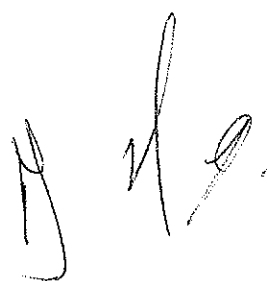



- 1.1.6 TRUST CAPITAL - the capital of the trust, including any net capital surplus, the reduction of capital as a result of net capital losses and capital awards.
- 1.1.7 TRUST FUND - the TRUST INCOME and the TRUST CAPITAL.
- 1.1.8 TRUST INCOME - has a wide connotation and includes all dividends, bonuses, interest, rental income, any receipts not of a capital nature and all accumulated funds in the trust including income reserves retained in the trust and not utilised in terms of clause 12 hereof.
- 1.1.9 TRUSTEES - any person named as one of the first TRUSTEES in this DEED, any person becoming a TRUSTEE in terms of this DEED hereafter and any assumed TRUSTEE.
- 1.2 Clause and paragraph headings are for purposes of reference only and shall not be used in interpretation.
- 1.3 Unless the context clearly indicates a contrary intention, any word denoting any gender includes the other gender, the singular includes the plural and vice versa, save for provisions of clause 1.1.2.3 hereof, natural persons includes artificial persons and vice versa and insolvency includes provisional or final sequestration, liquidation or judicial management.

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## 2. DONATION

2.1 The DONOR hereby donates to the TRUSTEES the amount of R1000 (one thousand rand), which amount will vest in the TRUSTEES with effect from the date of signature of this DEED and subject to the terms hereof.

2.2 The TRUSTEES hereby accept the said donation.

## 3. NAME

The name of the trust created by this DEED is the Sautech Trust.

## 4. APPOINTMENT, RESIGNATION AND REMOVAL OF TRUSTEES

4.1 There will at all times be a minimum of 2 TRUSTEES appointed in office. Should there at any time be less than the minimum number of TRUSTEES, the remaining TRUSTEE will make the necessary appointment.

4.2 The TRUSTEES will have the power to appoint additional TRUSTEES and such additional TRUSTEES will be bound by the terms and conditions of this DEED as if such TRUSTEE had been appointed under this DEED.

4.3 A TRUSTEE will cease to act as a TRUSTEE if:

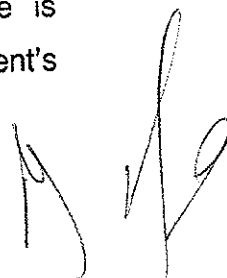
4.3.1 he resigns his appointment as such by written notice to that effect given to the remaining TRUSTEES and the Master of the High Court. Such resignation will take effect immediately after the last of such persons receives the notice concerned;

4.3.2 he has been declared by a competent court to be mentally ill or incapable of managing his own affairs, or he is detained as a patient at an institution or as the President's

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patient;

4.3.3 his estate is sequestrated or liquidated, either provisionally or finally or placed under judicial management or he makes an offer of compromise with his creditors;

4.3.4 in terms of section 69(8) of the Companies Act No.71 of 2008 (as amended) he is disqualified from serving as a director of a company;

4.3.5 he has been convicted of any offence of which dishonesty is an element or any offence for which he has been sentenced to imprisonment without the option of a fine;

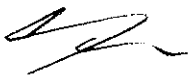
4.3.6 if he is removed in terms of the provisions of clause 4.4 hereof.

4.4 A TRUSTEE, with the exception of Hendrik Christiaan van Jaarsveld, may be removed from office by a resolution passed by the TRUSTEES as envisaged in clause 6 hereof. Notice of intention to remove a TRUSTEE must be given to that TRUSTEE at least 21 (twenty) one days prior to the date of the meeting of TRUSTEES to consider the resolution. The TRUSTEE concerned will be entitled to be heard at such meeting and if he deems it fit, to make representations to such TRUSTEES regarding his removal from office.

## 5. FURNISHING OF SECURITY BY TRUSTEES

The TRUSTEES will not be required to furnish security to the Master of the High Court or any other person, body or authority or as required in terms of the Trust Property Control Act, 1988 (as amended) for the administration of the monies of the trust, and the Master of the High Court or any other person, body or authority is hereby directed to dispense with such security.

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## 6. MEETINGS OF TRUSTEES AND RESOLUTIONS

6.1 The TRUSTEES will meet from time to time to discuss and resolve the business of the trust. For purposes hereof:

6.1.1 No meeting of the TRUSTEES will be properly constituted unless at least 2 TRUSTEES are present or unless the absent TRUSTEE has notified all the other TRUSTEES in writing that he will be absent from the meeting and will abide by any lawful decisions of the TRUSTEES taken at such meeting.

6.1.2 Save for any corporate trustee, no TRUSTEE will be represented at any meeting of the TRUSTEES by any other person.

6.1.3 Any TRUSTEE has the right to summon a meeting of the TRUSTEES at any place and time, which is reasonably convenient. At least 15 (fifteen) days written notice will be given of any meeting of the TRUSTEES unless a decision of the TRUSTEES is required on an urgent basis in which event the meeting will be called on 48 (forty eight) hours written notice.

6.2 The TRUSTEES will pass resolutions:

6.2.1 if there are 2 TRUSTEES, by means of unanimous decision;

6.2.2 if there are more than 2 TRUSTEES, by means of majority decision.

6.3 Notwithstanding the foregoing, a written resolution signed by all the TRUSTEES, including signature by a TRUSTEE on a letter, e-mail, telegram, telex, cable or telefax will be valid as if it had been

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passed at a duly constituted meeting of the TRUSTEES, the date of the resolution being the date on which the last TRUSTEE so signs. Any resolution may consist of several documents in like form each signed by one or more or all of the TRUSTEES.

## 7. REMUNERATION OF TRUSTEES

- 7.1 The TRUSTEES will be reimbursed out of the trust for all costs and expenses lawfully incurred by them in their personal capacity in connection with the execution of their official duties as TRUSTEES.
- 7.2 Any professional TRUSTEE (including any company of which he is a member, director or employee and including any partnership of which he is a partner or employee) will, in addition to the aforesaid reimbursement, be entitled to his usual or agreed professional charges for professional services rendered by him or such company or partnership to the trust.
- 7.3 In the event that any TRUSTEE is a non-professional TRUSTEE, such TRUSTEE will be entitled to a reasonable remuneration for services rendered by him in the execution of his official duties as TRUSTEE.

## 8. DUTIES OF TRUSTEES

In addition to the common law duties of trustees and the duties as stipulated in the Trust Property Control Act No 57 of 1988 (as amended), the TRUSTEES will further be subject to the following duties:

- 8.1 The TRUSTEES will at all times keep the property of the trust separate from their own property, will always deal with the property of the trust as a separate entity and will register all such property in the name of the trust, where possible.

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- 8.2 Whenever a person receives money in his capacity as TRUSTEE, he will deposit it in a separate trust account at a bank registered in terms of the Banks Act No.94 of 1990 (as amended).
- 8.3 The TRUSTEES will at all times cause proper records and books of account of the trust to be kept in accordance with sound accounting principles.
- 8.4 The TRUSTEES will at all times ensure that a competent person who is duly qualified is appointed as the accounting officer of the trust. An accounting officer will not be precluded from such appointment merely by reason of the fact that he is in any way connected to any TRUSTEE, provided that all the TRUSTEES have consented in writing to such appointment.
- 8.5 The TRUSTEES will procure that the books of the trust are subject to a review by the accounting officer at least once annually and that proper financial statements are prepared in respect of the affairs of the trust for each financial year of the trust.
- 8.6 The financial year of the trust will end on the last day of February of each year.
- 8.7 The TRUSTEES will familiarize themselves with the provisions of the Trust Property Control Act, 1988 (as amended) and will at all times comply with such provisions.
- 8.8 The TRUSTEES will in the performance and the exercise of their powers act with the care, diligence and skill which can reasonably be expected of a person who manages the affairs of another.

## 9. POWERS OF TRUSTEES

- 9.1 The TRUSTEES (acting in their capacity as such) will, in addition to any powers enjoyed by them under the common law or by statute,

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have the power to do whatever may be effected by a natural person who is *sui juris* in relation to his own affairs, to deal from time to time with the TRUST FUND and the affairs of the trust as they in their sole and absolute discretion deem fit, including acquiring, encumbering, disposing of and dealing with any property and incurring liabilities on behalf of the trust on such terms and conditions as they deem fit. Without limiting the generality of the foregoing, the TRUSTEES will have the following powers:

- 9.1.1 to purchase or acquire any property, including land, buildings, shares, debentures, unit trusts and insurance policies;
- 9.1.2 to manage, insure, sell, lease, mortgage, dispose of, give in exchange, work, develop, build on, improve or turn to account any property of the trust;
- 9.1.3 to apply for, purchase or by any other means acquire, protect, prolong and renew any patents, patent rights, licences, trade marks, copyrights, designs, concessions or other rights or property which is of a similar nature and to administer and alienate them as they deem fit;
- 9.1.4 to borrow money from any person or body;
- 9.1.5 to secure the payment of monies borrowed in any manner including the mortgaging and pledging of the property of the trust and, without detracting from the generality thereof, in particular, by the issue of any kind of debenture or debenture stock, whether subject to interest or interest free and whether secured or unsecured;
- 9.1.6 to lend money to any person including any beneficiary in terms of this DEED, with or without security and with or

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without interest;

- 9.1.7 notwithstanding anything to the contrary contained in clause 8.2 hereof or any other provision of this DEED, to invest money of the trust in any manner;
- 9.1.8 to let or grant (whether for consideration or otherwise) the right of use or occupation of any property owned by the trust;
- 9.1.9 to open and operate accounts with any bank registered in terms of the Banks Act No.94 of 1990 (as amended) and to overdraw such accounts;
- 9.1.10 to deposit securities representing investments for safe custody with any bank or banking company whose business it is to take charge of securities of that nature, and the TRUSTEES will not be responsible for any loss incurred by reason of such deposit and may pay out of the TRUST FUND any sum required to be paid on account of such deposit for safe custody.
- 9.1.11 to make, draw, issue, execute, accept, endorse and discount promissory notes, bills of exchange and any other kind of negotiable or transferable instruments;
- 9.1.12 to enter into indemnities, guarantees and suretyships and to secure payment thereunder in any way;
- 9.1.13 to form and/or have an interest in any manner in any juristic person for the purpose of acquiring the undertaking of all or any of the assets or liabilities of the juristic person for any purpose which may seem, directly or indirectly, calculated to benefit the trust, and to transfer to any such juristic

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person the undertaking of all or any of the assets or liabilities of the trust;

9.1.14 to take part in the management, supervision and control of the business or operations of any person or business and to enter into partnerships with any person;

9.1.15 subject to the provisions of this DEED, to contract with any person (which person may be TRUSTEES or related persons to such TRUSTEES and whether as agents or principals), for such person to act for or on behalf of the trust and for such person to perform any service for or on behalf of the trust and to remunerate and reimburse any such person (either in cash or otherwise) as they deem fit;

9.1.16 to act as principals or agents;

9.1.17 to enter into contracts outside the Republic of South Africa and to execute any contracts, deeds and documents in any foreign country;

9.1.18 to accept on behalf of and for the purpose of the trust as part of the property of the trust any gifts, bequests or payments from any person or body. Such additions to the trust may, at the TRUSTEES discretion, be retained in the form in which they were received or may be realised or invested in accordance with the provisions of this DEED;

9.1.19 to exercise all rights on behalf of the trust, including to call in, recover, collect and sue for all monies owing to them, to foreclose bonds and to buy in securities;

9.1.20 to institute or defend legal proceedings and to sign all deeds, powers of attorney and other documents that may

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be necessary in respect of any matter arising out of or in connection with this trust;

- 9.1.21 to sign and execute transfers and cessions of property, bonds, consents to cancellations of bonds, leases, servitudes and other deeds and powers of attorney relating thereto, and generally all documents of any nature whatsoever as may be necessary from time to time in connection with the acquisition, realization, disposal or encumbrance of property of or for the trust and the carrying out of the terms of this DEED;
- 9.1.22 to allow time for the payment of any debts due to them and to grant credit in respect of the whole or any part of the purchase price arising on the sale of any property of the trust in either case with or without security and with or without interest, as they may deem fit;
- 9.1.23 to exercise the voting powers attached to any shares, debentures or any interest in any juristic persons;
- 9.1.24 to cause (either solely or in conjunction with other persons) any re-organisation, consolidation, merger, re-adjustment, alteration or conversion of the capital value of any shares or interest of or in any juristic person which may at any time be held as a portion of the property of the trust, and arising out of any such re-organisation, consolidation, merger or re-adjustment to receive and continue to hold as a portion of the property of the trust any property accruing by reason of their participation in any such matters;
- 9.1.25 to exercise any rights of conversion or subscription appertaining to any shares at any time held in the capital of

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any juristic person which is a portion of the assets of the trust or, at their discretion, to sell or release any such rights;

- 9.1.26 from time to time to use any voting rights attached to any shares or interest to cause such change to be made in the boards of directors or any other officers of any of the juristic persons involved as they may consider to be in the best interests of the trust and they will be entitled to appoint or cause to be appointed any one or more of themselves as such directors or officers or cause some other person to be so appointed on the basis that such person will act as nominee for the TRUSTEES with the right to receive and retain remuneration for their services as directors and other officers;
- 9.1.27 to enter into any voting agreement in respect of any shares or interests held by them in any juristic person relating to or restricting the disposal of those shares or interest and in particular granting rights of pre-emption to other shareholders or members of the said juristic person and also relating to voting arrangements;
- 9.1.28 subject to their obtaining all requisite consents and authorities, to transfer the administration and management of the property of the trust or any part thereof to any country in the world;
- 9.1.29 to compromise, compound, submit to arbitration or settle upon such terms and conditions as they may deem advisable all claims made by or against them or matters arising in relation to the trust;
- 9.1.30 make use of the services of any administrators,

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Practicing Attorney  
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professional advisors, investment advisors, financial planners and contractors (which persons may be TRUSTEES or related persons to such TRUSTEES) for the affairs of the trust and to pay for such services out of the TRUST FUNDS;

9.1.31 to discharge the liabilities of the trust as and when determined by the TRUSTEES;

9.1.32 to determine in their absolute discretion whether a receipt, loss or expense be treated as income or capital;

9.1.33 to pay to any beneficiary any amount due to the beneficiary in cash or in kind or partly in cash or in kind and to determine the valuation of any assets distributed in kind provided that:

9.1.33.1 the TRUSTEES may employ a valuer for the purpose of determining the value of any such assets;

9.1.33.2 the decision of the TRUSTEES as to the value of any assets for the purpose of this paragraph will be final and binding on any beneficiary or interested person;

9.1.33.3 no beneficiary may dispute the value of any such assets.

9.1.34 to take out or in any manner (whether for consideration or otherwise) acquire policies on the life of any person/s, including any beneficiary, to pay the premiums from time to time due thereunder and to keep alive any such policy and to surrender, redeem, dispose of, encumber and to borrow

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against any such policy with the right generally to deal with any such policy in such a way as a natural person who owned the policy would be entitled to do;

9.1.35 to do all of the above subject to such terms and conditions as they deem fit and to agree to any consensual cancellation, variation or waiver of such terms, conditions and agreements as they deem fit.

9.2 Notwithstanding the provisions of this clause 9, the exercise by the TRUSTEES of any of the powers conferred upon them in terms of this DEED will not be affected or prejudiced by reason of the fact that any of them may be interested in any manner whatsoever, whether directly or indirectly, with any juristic person envisaged in this clause 9, nor will any such contract or dealings by the TRUSTEE concerned be void or voidable, nor will the TRUSTEE be liable as a result of the fiduciary relationship established in terms of this DEED, it being the intention that the consequences of the fiduciary relationship established in terms of this DEED be dispensed with for purposes of this clause 9. The provisions of this clause are however subject to the proviso that the TRUSTEE concerned will have disclosed to the other TRUSTEES prior to contracting with the trust the nature of his interest and any other factors material to the transaction and which would be required by the TRUSTEE by reason of his fiduciary relationship established in terms of this DEED.

9.3 Notwithstanding the provisions of this DEED, the TRUSTEES will not have the power to deal or traffic in the property of the trust. The property of the trust will be used for the purpose of investment only with a view to receiving income therefrom.

9.4 The TRUSTEES will not be empowered to carry out any act

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unilaterally which will have the effect of benefiting themselves or their estates except such borrowing powers and other benefits as are expressly conferred by this DEED.

## 10. LIABILITY OF TRUSTEES

- 10.1 Notwithstanding the foregoing, the TRUSTEES will not be answerable for, or liable to make good, any loss occasioned to or sustained by the trust or any beneficiary from whatsoever cause arising, including any loss arising from their advancing monies or making loans without security or with inadequate security, save and except such loss as may arise from or be occasioned by his own personal dishonesty.
- 10.2 The TRUSTEES will be indemnified by the trust against all claims and demands of whatsoever nature that may be made against them arising out of the *bona fide* exercise or purported exercise of any of the powers conferred upon them in terms of this trust.
- 10.3 No TRUSTEE will be liable for any act of dishonesty committed by any other TRUSTEE unless he knowingly allowed it.
- 10.4 If the TRUSTEES in good faith make a *bona fide* payment to any person whom they assume to be entitled thereto and it is subsequently found that some other persons are entitled thereto, the TRUSTEES will nevertheless not be responsible for the monies so paid.
- 10.5 In the event that the TRUSTEES are liable for any taxes in respect of the trust, the trust will indemnify the TRUSTEES against all claims and demands for such taxes.

## 11. TRANSACTIONS BETWEEN THE TRUST AND THE TRUSTEES

Any TRUSTEE will be entitled directly or indirectly to contract with the trust

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and to retain any profit which may accrue therefrom provided that the TRUSTEE concerned will have disclosed to the other TRUSTEES prior to contracting with the trust the nature of his interest and any other factors material to the transaction and which would be required by the TRUSTEE by reason of his fiduciary relationship established in terms of this DEED.

## 12. EMPLOYMENT OF TRUST INCOME

12.1 The TRUSTEES are empowered, in their sole and absolute discretion and without restriction, to use the TRUST INCOME of the trust as follows:

12.1.1 To pay the costs, expenses (including their remuneration), and charges lawfully incurred by them in connection with the administration of the trust, including the administration, custody and safeguarding of the TRUST FUND and any taxation that may become payable by the trust and/or the TRUSTEES in their representative capacity and/or any person. The aforementioned will be a first charge on the TRUST INCOME .

12.1.2 To make payment of any insurance policy envisaged in clause 9.1.34. The aforementioned will be a second charge on the TRUST INCOME .

12.1.3 To pay to or on behalf of the INCOME BENEFICIARIES in such amounts and in such proportions as the TRUSTEES in their sole and absolute discretion deem reasonable or desirable, for the MAINTENANCE of any INCOME BENEFICIARY. The aforementioned will be a third charge on the TRUST INCOME.

12.1.4 To pay to or on behalf of the INCOME BENEFICIARIES in such amounts and in such proportions as the TRUSTEES

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in their sole and absolute discretion deem reasonable or desirable for the benefit of any INCOME BENEFICIARY.

- 12.2 To the extent that the TRUST INCOME of the trust is not sufficient for the purposes as envisaged in clause 12.1.1, 12.1.2 and 12.1.3 hereof, the TRUSTEES are empowered, in their sole and absolute discretion, to use as much of the TRUST CAPITAL as may be necessary for such purposes.
- 12.3 Without in any way detracting from the TRUSTEES' discretion, it is the DONOR'S wish that before any amounts of TRUST INCOME are applied, distributed or paid to or on behalf of the INCOME BENEFICIARIES, consideration must first be given to ensuring that the MAINTENANCE payable to the INCOME BENEFICIARY and the CAPITAL BENEFICIARY identified by name in this DEED is in accordance with the lifestyle to which they are accustomed and once such needs have been met, to be applied, distributed or paid to or on behalf of the remaining INCOME BENEFICIARIES by representation *per stirpes*. The provisions of this clause are subject to the proviso that the TRUSTEES consider the personal circumstances of each INCOME BENEFICIARY in determining the ratio of the TRUST INCOME to be applied, distributed or paid to or on behalf of the INCOME BENEFICIARIES.
- 12.4 The TRUSTEES are empowered, instead of actually making payment to any INCOME BENEFICIARY of any amounts envisaged in terms of clause 12.1.2, 12.1.3 and 12.1.4, to retain and earmark the amount so payable to any INCOME BENEFICIARY and to accumulate and/or invest for such INCOME BENEFICIARY'S sole and exclusive benefit or treat as a loan to or claim against the trust all unexpended balances of such TRUST INCOME together with any income that may be derived therefrom and any other accretions

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thereto on the basis that such INCOME BENEFICIARY'S accumulation of TRUST INCOME, whether invested or not, remains the sole property of such INCOME BENEFICIARY and will, during the continuance of the trust, be capable of being paid to such INCOME BENEFICIARY at such times and in such amounts as the TRUSTEES may determine, provided that any such TRUST INCOME which has accrued to and vested in but not paid to such INCOME BENEFICIARY will:

12.4.1 on his death be paid to the executor of his estate on demand;

12.4.2 subject to the provisions of clause 13.4 hereof, on termination of the trust be paid to such INCOME BENEFICIARY.

### 13. EMPLOYMENT OF TRUST CAPITAL

13.1 The TRUSTEES are empowered from time to time, in their sole and absolute discretion and without restriction, to apply, distribute or pay to or on behalf of any CAPITAL BENEFICIARY any portion of the TRUST CAPITAL as they deem fit.

13.2 The TRUSTEES are empowered, instead of actually making payment of any amount to any CAPITAL BENEFICIARY, to retain and earmark the amount so payable on the same terms and conditions *mutatis mutandis* as those contained in clause 12.4 hereof.

13.3 Without in any way detracting from the TRUSTEES' discretion, it is the DONOR'S wish that before any amounts of TRUST CAPITAL are applied, distributed or paid to or on behalf of the CAPITAL BENEFICIARIES, consideration must first be given to ensuring that the MAINTENANCE payable to the INCOME BENEFICIARY and

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the CAPITAL BENEFICIARY identified by name in this DEED is in accordance with the lifestyle to which they are accustomed and is secure. Thereafter, the TRUSTEES are empowered, in their sole and absolute discretion, to apply, distribute or pay to or on behalf of the CAPITAL BENEFICIARIES any portion of the TRUST CAPITAL by representation *per stirpes*. The provisions of this clause are subject to the proviso that the TRUSTEES consider the personal circumstances of each CAPITAL BENEFICIARY in determining the ratio of the TRUST CAPITAL to be applied, distributed or paid to or on behalf of the CAPITAL BENEFICIARIES.

- 13.4 Should any CAPITAL BENEFICIARY envisaged herein not have attained the age of 25 (twenty five) years when such portion of the TRUST CAPITAL falls to be paid to such CAPITAL BENEFICIARY then:

13.4.1 The TRUSTEES will continue to hold, administer, deal with and apply that portion of the TRUST CAPITAL in accordance with the provisions of this DEED and from time to time to apply the net income thereof for the MAINTENANCE of such CAPITAL BENEFICIARY or to pay to him the net income as the TRUSTEES in their sole and absolute discretion from time to time determine.

13.4.2 Notwithstanding anything to the contrary herein contained, the TRUSTEES may, in their sole and absolute discretion, pay to or on behalf of such CAPITAL BENEFICIARY before such CAPITAL BENEFICIARY attains the age of 25 (twenty five) years any such portion of the TRUST CAPITAL.

#### 14. TERMINATION

- 14.1 This trust will terminate at the end of its financial year 50 (fifty)

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years after the death of the last dying of the INCOME BENEFICIARY and the CAPITAL BENEFICIARY identified by name in this DEED.

- 14.2 If however the TRUSTEES are of the opinion that circumstances have arisen or might arise to warrant their doing so, the TRUSTEES may, in their sole and absolute discretion, terminate the trust or any part thereof any time prior to the date of termination envisaged in clause 14.1 hereof. Alternatively, notwithstanding that such date of termination envisaged in clause 14.1 has arrived, the TRUSTEES may continue the trust or any part thereof for a further period of 10 (ten) years.
- 14.3 On termination of the trust, any TRUST INCOME and TRUST CAPITAL that has vested in and accrued to such INCOME BENEFICIARIES and CAPITAL BENEFICIARIES in terms of clauses 12.4 and 13.2 hereof together with all unpaid income and accretions thereto is to be paid by the TRUSTEES to such INCOME BENEFICIARIES and CAPITAL BENEFICIARIES.
- 14.4 In the event that any CAPITAL BENEFICIARY has not attained the age of 25 (twenty five years) then such TRUST CAPITAL and TRUST INCOME will be held, administered, dealt with and applied by the TRUSTEES in accordance with the provisions of this DEED.
- 14.5 On termination of the trust, the TRUSTEES are to divide the TRUST CAPITAL in accordance with the provisions of clause 13.3 hereof and the TRUST INCOME in accordance with the provisions of clause 12.3 hereof.

## 15. RESTRICTIONS ON BENEFICIARIES

- 15.1 Until any benefit or award vests in a beneficiary, nothing herein contained shall create or confer upon any beneficiary any right or

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claim to any benefit or award or delivery of any assets hereunder.

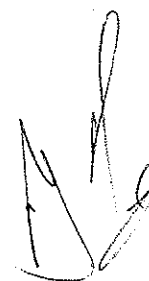
15.2 No rights or hopes of any beneficiary under this trust and no part thereof shall be attachable by any creditor of any beneficiary or vest in his TRUSTEE on insolvency and if, prior to any payment or award being made to any beneficiary, he shall have committed or suffered any act, default or process of law (other than a cession, assignment, pledge or other encumbrance which the TRUSTEES have not refused to recognise in terms of clause 15.3 hereof), whereby such rights or hopes or any part thereof would, but for the provisions of this clause, become vested in or payable to any other party or if any beneficiary shall be declared insolvent or assign his estate in favour of his creditors or if an attachment is made or execution is levied on or against the rights or hopes of any beneficiary or any part thereof then and in any or all of such cases such rights and hopes of the beneficiary concerned under this trust will immediately be forfeited and those rights and hopes will thereupon vest in the TRUSTEES to be dealt with by them, subject to the following provisions, namely:

15.2.1 no such beneficiary shall be obliged to repay to the trust any amounts previously paid or advanced to him by the trust;

15.2.2 the TRUSTEES will treat such beneficiary's entitlement in terms of this DEED to the proportionate share of the TRUST CAPITAL as if such beneficiary had died and such entitlement had passed to such beneficiary's intestate heirs. For purposes of this DEED, such intestate heirs will be treated as INCOME BENEFICIARIES and CAPITAL BENEFICIARIES and any such benefit accruing to such beneficiaries will also be subject to the provisions of this

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## DEED.

- 15.3 The TRUSTEES shall be entitled to refuse to recognise and to treat as null and void any cession, assignment or pledge of the rights or hopes of any beneficiary hereunder. The TRUSTEES may refuse to make any payment otherwise than direct to or on behalf of or for the benefit of the person entitled thereto under this DEED. Notwithstanding anything to the contrary herein contained, no rights or hopes under this DEED may be ceded to any cessionary other than a natural person.

**16. MARRIAGE OF ANY BENEFICIARY**

All benefits accruing to any beneficiary in terms of this DEED will not form part of any joint estate of such beneficiary and/or his or her spouse and will not be subject to the power or control or administration of such spouse.

**17. SEPARATE TRUSTS**

Subject to the provisions of clause 13.3 hereof, the TRUSTEES are empowered from time to time, in their sole and absolute discretion to divide the TRUST FUND for each CAPITAL BENEFICIARY and create (by means of a formal written deed of trust, the terms of which will be as envisaged in clause 1.1.2.3 hereof) a separate trust in respect of each portion of the TRUST CAPITAL so divided for the general benefit of the aforementioned CAPITAL BENEFICIARIES.

**18. AMENDMENT TO TRUST DEED**

- 18.1 The TRUSTEES by unanimous decision will have the power to amend the provisions of this DEED.

- 18.2 The amendment will be binding on all TRUSTEES and beneficiaries.

- 18.3 Notwithstanding the provisions of this clause 18, the terms of this

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DEED may not be varied in such a way so as to benefit the DONOR.

## 19. DISPUTE RESOLUTION

In the event that any dispute arises between the TRUSTEES themselves or between the TRUSTEES and any beneficiary or the DONOR, such dispute will be referred by the TRUSTEES to an arbitrator in accordance with the Rules of the Arbitration Foundation of Southern Africa, or failing such Foundation or such Rules then such dispute will be resolved in terms of the Arbitration Act No.42 of 1965 (as amended) or any legislation in substitution therefor. The arbitrator's decision will be final and binding on the parties to the dispute.

## 20. TAXATION

In the event that any person becomes liable for any tax as a result of any transaction or the relationship between such person and the trust and providing that no benefit of income is received by or accrued to or in favour of that person, then the TRUSTEES will be entitled to refund to that person out of the TRUST FUND the amount of tax for which he becomes liable. The amount of the refund will be calculated as that amount which represents the difference between such person's total tax payable and the tax which would have been payable on such person's taxable income but for the receipt or accrual envisaged herein.

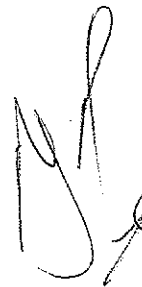
## 21. GENERAL

21.1 Any beneficiary will be entitled at any time to unconditionally repudiate or renounce any benefit or potential benefit in terms of this DEED in which event the provisions of this DEED will apply *mutatis mutandis* as if such beneficiary had predeceased the date of such repudiation or renunciation.

21.2 Notwithstanding anything to the contrary herein contained, the

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INCOME BENEFICIARY and the CAPITAL BENEFICIARY identified by name in this DEED in their private capacity will have the right to borrow from the trust any sums which such borrower/s may require up to the full amount of the TRUST FUND subject however to such further terms and conditions as may be agreed between the borrower/s and the TRUSTEES. In the event that such borrower/s and the TRUSTEES are unable to agree on the terms and conditions of the loan then the loan amount and the interest thereon will be fixed and such loan amount and interest will be repayable by the estate of the borrower/s on the borrower/s death.

- 21.3 No amounts devolving upon any minor beneficiaries, whether from TRUST INCOME or TRUST CAPITAL, will be paid into the Guardian's Fund. The TRUSTEES will hold, administer, deal with and apply such amounts in terms of this DEED. The TRUSTEES may also elect to pay or hand over to the parent or guardian such amounts for the benefit of such minor beneficiary in terms of this DEED and on receipt by the TRUSTEES of an acquiescence from such parent or guardian, the TRUSTEES would have validly discharged such amount.

## 22. GOVERNING LAWS

The governing law of this DEED is the law of the Republic of South Africa.

Date

27/08/2014

Place

Krugersdorp

Signatory

  
DONOR

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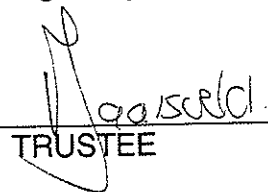
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Date

Place

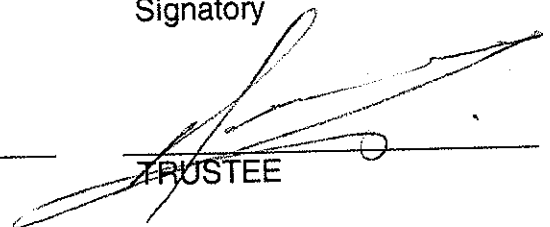
Signatory

2014/08/27Krugersdorp
  
 TRUSTEE

Date

Place

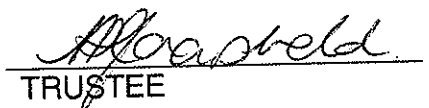
Signatory

2014/08/27Krugersdorp
  
 TRUSTEE

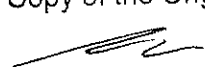
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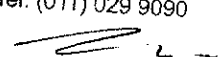
Signatory

2014/08/27KRUGERSDORP.
  
 TRUSTEE

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Brenton

J405



REPUBLIC OF SOUTH AFRICA

UNDERTAKING BY AUDITOR/ACCOUNTANT  
(Inter-Vivos Trust)

I (Full names and surname) BRENTON SPIES

ID/ Passport No: 

|   |   |   |   |   |   |   |   |   |   |   |   |   |
|---|---|---|---|---|---|---|---|---|---|---|---|---|
| 7 | 2 | 1 | 0 | 0 | 6 | 5 | 0 | 3 | 6 | 0 | 8 | 7 |
|---|---|---|---|---|---|---|---|---|---|---|---|---|

Representative of Organisation (If Applicable) .....

Registration Number (If Applicable) .....

Accreditation Body: SAICA

Accreditation Registration No 03097602

Hereby undertake to act as Auditor/Accountant of the Trust known as:  
SAUTECH TRUST

I choose the following address:

Domicillium Citandi et executandi (physical address)

Postal Address

10 BOX 752679  
GARDENVIEW  
2047

Tel: .....

Cell: 0836622111

E-mail: brenton@hitide.co.za

DECLARATION AND UNDERTAKING

I am qualified to act as Auditor/Accountant of the above Trust and undertake to advise the Master:

- Should I cease to act in the above Trust Yes ☒
- The name of the new Auditor/Accountant should I be aware thereof Yes ☒
- Should there be any changes in the capital/income beneficiaries in this trust Yes ☒
- Should the Trust not have been administered in accordance with the terms and conditions of the trust deed Yes ☒
- Of any substantial addition, to the capital and assets of the trust and value thereof Yes ☒

Provide reason if any of the above could NOT be answered Yes:

.....  
.....  
.....  
.....

26/06/2014  
Date

B/hw  
Signature of Auditor/Accountant

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DEPARTMENT OF JUSTICE AND CONSTITUTIONAL DEVELOPMENT

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GEREGISTREERDE WOON- EN POSADRES

1. Bywys, de bewys van u GEGISTREERDE WOON- EN POSADRES in hierdie sake.

2. Indien u van adres verander het, of indien besonderhede van u huidige adres, byvoorbeeld en/of -nommer, ens. verander het, moet die vorm KENNISGEWING VAN ADRESVERANDERING, wat in die sake agter in die identiteitsdokument is, gebruik word om die verandering aan te meld en 'n oordragedien te word by of opges word aan die neareste sakes-opskryfswaai van die DEPARTEMENT VAN BINNELANDSE SAKKE.

REGISTERED RESIDENTIAL AND POSTAL ADDRESS

1. Keep the proof of your REGISTERED RESIDENTIAL AND POSTAL ADDRESS in this pocket.

2. If you have changed your address, or, if particulars of your present address, e.g. name of street and/or street number, etc., have been changed, the NOTICE OF CHANGE OF ADDRESS form in the pocket at the back of the identity document must be used to report the change, and it must be handed in at or posted to the nearest regional district office in the DEPARTMENT OF HOME AFFAIRS.

I.D.No. 810402 5017 08 0



S. A. BURGER/S. A. CITIZEN

VAN/SURNAME

VAN JAARSVELD

VOORNAME/FORENAMES

HENDRIK CHRISTIAAN

GEBOORTEDISTRIK OF -LAND/  
DISTRICT OR COUNTRY OF BIRTH

SUID-AFRIKA

GEBOORTEDATUM/  
DATE OF BIRTH

1981-04-02



DATUM UITGEREIK  
DATE ISSUED

1999-10-22

UITGEREIK OF GEAG VAN DIE  
DIREKTEUR GENERAAL  
BINNELANDSE SAKKE

ISSUED BY AUTHORITY OF THE  
DIRECTOR GENERAL  
HOME AFFAIRS

*Confers a true copy  
of the Original  
9/4/2014*

STEPHANUS ALBERTUS VAN JAARSVELD  
GENERAL MANAGER  
**Nedbank Limited**  
Reg No 1951/000009/06  
CASH SERVICES DEPARTMENT  
6 PRESS AVENUE, SELBY  
MAGISTERIAL DISTRICT OF JOHANNESBURG  
COMMISSIONER OF OATHS EX OFFICIO

Commissioner of Oaths  
Viljoen Attorneys  
Riaan Viljoen  
Practicing Attorney  
93 Soetdoring Crescent  
The Clubhouse  
Millwood Lifestyle Estate  
14 Petunia Road, Bryanston  
Tel: (011) 029 9090



# REGISTREERDE WOON- EN POSADRES

die bewys van u GEREGISTREERDE WOON- EN  
POSADRES hierdie sakkie.

van adres verander het, of indien besonderhede van u  
adres, by straatnaam en/of -nommer, ens. verander het,  
KENNISGEWING VAN ADRESVERANDERING, wat  
in die identiteitsdokument is, gebruik word om die  
aan te meld en moet dit ingedien word by of gepos word  
by die streek-/distrikkantoor van die DEPARTEMENT VAN  
HUISSAKE.

## REGISTERED RESIDENTIAL AND POSTAL ADDRESS

the proof of your REGISTERED RESIDENTIAL AND  
POSTAL ADDRESS in this pocket.

have changed your address, or, if particulars of your  
address, e.g. name of street and/or street number, etc. have  
changed, the NOTICE OF CHANGE OF ADDRESS form in the  
back of the identity document must be used to report  
the change. It must be handed in at or posted to the nearest  
office of the DEPARTMENT OF HOME AFFAIRS.

I.D.No. 530408 0149 08 2



S.A. BURGER/S.A. CITIZEN

VAN/SURNAME

VAN JAARSVELD

VOORNAME/FORENAMES

MAGDALENA CATHARINA

GEBORTEDISTRIK OF -LAND/  
DISTRICT OR COUNTRY OF BIRTH

SUID-AFRIKA

GEBORTE DATUM/  
DATE OF BIRTH

1953-04-08

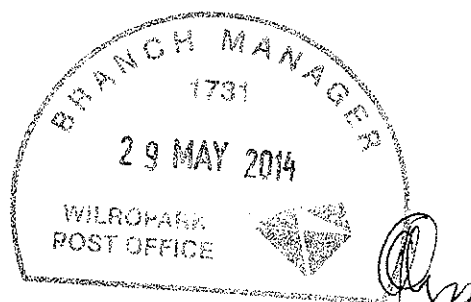


DATUM UITGEREIK  
DATE ISSUED

1990-07-24

UITGEREIK OP GESAG VAN DIE  
DIREKTEUR-GENERAAL  
BINNELANDSE SAKE

ISSUED BY AUTHORITY OF THE  
DIRECTOR GENERAL  
HOME AFFAIRS



IT IS HEREBY CERTIFIED THAT THIS IS  
A TRUE COPY OF THE ORIGINAL  
DOCUMENT AND THAT THERE IS NO  
INDICATION THAT ALTERATIONS HAVE  
BEEN MADE THEREON.

Commissioner of Ombudsman  
Viljoen Attorneys  
Riaan Viljoen  
Practicing Attorney  
93 Soetdoring Crescent  
The Clubhouse  
Millwood Lifestyle Estate  
14 Petunia Road, Bryanston  
Tel: (011) 029 9090

GEREGISTREERDE WOON- EN POSADRES

1. Bewaar die bewys van u GEGISTREERDE WOON- EN POSADRES in hierdie sakkie.

2. Indien u van adres verander het, of indien besonderhede van u huidige adres, bv. straatnaam en/of nommer, ens. verander het, moet die vorm KENNISGEWING VAN ADRESVERANDERING, wat in die sakkie agter in die identiteitsdokument is, gebruik word om die verandering aan te meld en moet dit ingedien word by of gepos word aan die naaste streek-/distrikkantoor van die DEPARTEMENT VAN BINNELANDSE SAKE.

REGISTERED RESIDENTIAL AND POSTAL ADDRESS

1. Keep the proof of your REGISTERED RESIDENTIAL AND POSTAL ADDRESS in this pocket.

2. If you have changed your address, or if particulars of your present address, e.g. name of street and/or street number, etc., have been changed, the NOTICE OF CHANGE OF ADDRESS form in the pocket at the back of the identity document must be used to report the change, and it must be handed in at or posted to the nearest regional/district office of the DEPARTMENT OF HOME AFFAIRS.

I.D.No. 530325 5064 08 4



S.A. BURGER/S.A. CITIZEN

VAN SURNAME

VAN JAARSVELD

VOORNAME/FORENAMES

STEPHANUS ALBERTUS

GEBOORTE/STRAAT OOR/PLAAS  
DISTRICT OF COUNTRY OF BIRTH

SUID-AFRIKA

GEBOORTEDATUM  
DATE OF BIRTH

1953-03-25



DATUM UITGEREIK  
DATE ISSUED

2001-10-15

UITGEEK IN OOR/PLAAS/AN/DIE  
BUREAU/GENERAL  
BINNELANDSE SAKE

ISSUED BY AUTHORITY OF THE  
DIRECTOR GENERAL  
HOME AFFAIRS

IT IS HEREBY CERTIFIED THAT THIS IS  
A TRUE COPY OF THE ORIGINAL  
DOCUMENT AND THAT THERE IS NO  
DUPLICATION THAT AUTHORITY MUST  
BE OBTAINED FOR THIS COPY

*[Signature]*



*[Signature]*

Commissioner of Oaths  
Viljoen Attorneys  
Riaan Viljoen  
Practicing Attorney  
93 Soetdoring Crescent  
The Clubhouse  
Millwood Lifestyle Estate  
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